

****23.08.2023****

****Fine for GDPR Violation****

The National Authority for the Supervision of Personal Data Processing completed an investigation in July 2023 regarding the operator BODY LINE SRL and found that it violated the provisions of Articles 5, 6, 9, 17, and Article 32 paragraphs (1) and (2) of Regulation (EU) 2016/679 (GDPR).

The operator was sanctioned with fines totaling 49,322 lei, equivalent to 10,000 EURO.

The investigation was initiated following a complaint alleging that the operator disclosed the personal data of a petitioner (a client of the operator) by posting an audio-video recording on the operator's social media pages.

During the investigation, the National Authority for the Supervision found that BODY LINE SRL, through its social media pages, disseminated the petitioner's data from the audio-video recording and used a term in comments that revealed the petitioner's ethnic origin, without having a legal basis, thus violating the provisions of Articles 5, 6, and 9 of Regulation (EU) 2016/679.

It was also found that the operator did not comply with the petitioner's request for data deletion, violating the provisions of Article 17 of Regulation (EU) 2016/679.

At the same time, it was established that the operator did not adopt sufficient technical and organizational measures to ensure the confidentiality of personal data processed through the audio-video surveillance system. This situation led to the access and subsequent dissemination on the operator's social media pages of an audio-video recording featuring the petitioner, thereby violating the provisions of Article 32 paragraphs (1) and (2) of Regulation (EU) 2016/679.

Additionally, the operator BODY LINE SRL was also subjected to the following corrective measures:

- to ensure compliance with GDPR in the operations of personal data processing, including by developing written procedures, so that the personal data of the data subjects are processed in strict compliance with the legal provisions regarding personal data protection, by avoiding the illegal/excessive/unauthorized collection and/or disclosure of their personal data;
- to comply with the request for deletion of the personal data of the petitioner related to the posts on the operator's social media pages;
- to ensure compliance with GDPR in the operations of personal data processing by implementing appropriate technical and organizational measures, especially regarding the training of individuals processing data under its authority (employees or collaborators), by regularly organizing training sessions with them regarding their obligations concerning the processing of personal data through the video surveillance system, establishing the conditions under which images or audio-video recordings can be accessed by a limited number of individuals, based on individual credentials, periodically verifying access to the recordings of images, as well as quickly detecting, managing, and reporting situations of personal data security breaches.

A.N.S.P.D.C.P.